

EMPLOYMENT AGREEMENT — DRAFT

(ABA-ANCHORED)

This Employment Agreement (the "Agreement") is entered into between the Company and the Employee as of the Effective Date. The Employee will be employed by the Company on the terms set forth below. The Company is a Delaware corporation with its principal place of business in San Francisco, California. The Employee resides in California. The parties acknowledge that California law applies to certain obligations under this Agreement, including non-solicitation enforceability.

1. Notice Period. Either Party may terminate this Agreement by giving the other Party not less than ninety (90) days' prior written notice. The notice period shall run from the date of receipt of the written notice. During the notice period, the Employee shall continue to perform their duties and the Company shall continue to compensate the Employee at the Employee's then-current base salary rate.
2. Compensation. The Company shall pay the Employee an annual base salary of the amount set out in Schedule A, payable in equal monthly installments in arrears. Any annual bonus shall be awarded, if at all, in the sole and absolute discretion of the Company, and the Employee shall have no contractual entitlement to any bonus or to any particular level of bonus in any year. The Employee acknowledges that no representation has been made as to the amount or likelihood of any bonus.
3. Vacation and Leave. The Employee shall be entitled to twenty-five (25) paid vacation days per calendar year, accruing pro rata, in addition to public holidays. Unused vacation days may be carried over to the following calendar year, up to a maximum accrual of ten (10) days, beyond which they will be forfeited. The Employee shall also be entitled to sick leave, family leave, and other statutory leaves in accordance with applicable law.
4. Termination for Cause. The Company may terminate this Agreement for cause, including but not limited to: (a) material breach of this Agreement by the Employee, (b) gross misconduct, (c) conviction of a felony, or (d) sustained unsatisfactory performance. The Company shall give the Employee not less than thirty (30) days' prior written notice of any termination under this Section, specifying the grounds for the termination in reasonable detail. The Employee shall have the opportunity to cure any curable breach during the notice period.
5. Non-Solicitation. For a period of twelve (12) months following the termination of the Employee's employment, the Employee shall not, directly or indirectly, solicit any employee, contractor, customer, or client of the Company with whom the Employee had material contact during the twelve (12) months preceding termination, for the purpose of inducing them to terminate or modify their relationship with the Company.
6. Working Hours. The Employee's normal working hours shall be 9:00 a.m. to 6:00 p.m. Monday through Friday, with one (1) hour for lunch. The Employee acknowledges that the nature of their position may require additional hours beyond the normal working hours, and the Employee agrees to work such additional hours as may be reasonably required.
7. Probationary Period. The first ninety (90) days of the Employee's employment shall constitute a probationary period, during which either Party may terminate this Agreement by giving the other Party not less than seven (7) days' prior written notice. The Company's exercise of its termination right during the probationary period shall not give rise to any claim by the Employee.
8. Confidentiality; Survival. The Employee shall maintain the confidentiality of all Confidential Information of the Company both during and after the term of employment, for a period of three (3) years following termination. With respect to information that constitutes a trade secret under applicable law, the confidentiality obligation shall survive for so long as such information remains a trade secret.

